

**14. 9:00 AM CASE NUMBER: N26-0447**  
**CASE NAME: PETITION OF:QUALITY LOAN SERVICE CORP.**  
**HEARING ON PETITION IN RE: PETITION FOR RELEASE OF SURPLUS FUNDS**  
**FILED BY: QUALITY LOAN SERVICE CORP.**

**\*TENTATIVE RULING:\***

The matter is on calendar for determination of Petitioner Quality Loan Service Corp.'s ("Petitioner") Petition and Declaration regarding Unresolved Claims and Deposit of Undistributed Surplus Proceeds of Trustee's Sale filed on March 10, 2026 (the "Petition"). The matter was set for hearing on July 30, 2026.

Background

As set forth in the Petition, the sum of \$240,079.27 remained undistributed following a trustee's sale held on or about June 2, 2025. That amount was ordered deposited with the Clerk of the Court (the "Deposited Funds"). See Order entered April 23, 2026 (the "Order for Deposit of Surplus Funds").

Thereafter, the Court set and noticed this hearing on the Petition. See Notice of Hearing dated June 3, 2026.

Analysis

No further filings have been made by any party or third party. No written claims have been filed or otherwise presented before the Court with respect to the Deposited Funds.

Prior to the deposit, no written claims had been received by the trustee as to the Deposited Funds. See Petition, ¶9.

Notice was duly given pursuant to Civil Code section 2924j(a)-(c).

The Court finds that all known potential claimants have been given notice at their last known addresses and other potential addresses identified by Petitioner.

No party entitled to the funds has sought to claim them.

Therefore, the funds are to remain on deposit with the Court for a three-year period prior to escheatment. See Gov. Code § 68084.1(a) ("Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court . . ."). Any interested party may file a claim with the Court's executive officer for all or a portion of the Deposited Funds prior to escheatment. Gov. Code § 68084.1(c); Civ. Proc. §§ 1300 *et seq.*

The Court's executive officer shall provide notice pursuant to Government Code section 68084.1(b) prior to escheatment.

Disposition

The Court finds and rules as follows:

1. The Deposited Funds are to remain on deposit with the Court pursuant to Government Code section 68084.1(a) *et seq.*
2. The Court to prepare the order after hearing.

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| Discovery Law & Motion |
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**15. 9:01 AM CASE NUMBER: C25-00575**  
**CASE NAME: JANE DOE N.M. VS. DOES 1 THROUGH 100, INCLUSIVE**  
**\*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS OF RECORDS**  
**FILED BY: DOE N.M., JANE**  
**\*TENTATIVE RULING:\***

Plaintiff Jane Doe N.M. ("Plaintiff") filed a motion to compel further responses to request for production of documents on March 2, 2026 (the "Motion to Compel"). By the Motion to Compel, Plaintiff seeks further responses to Request for Production of Documents, No. 41 (the "RPD"). The Motion to Compel was set for hearing August 3, 2026. The motion is opposed.

Background

Plaintiff served the RPD on December 10, 2025. See Opposition to Motion to Compel filed July 21, 2026 (the "Opposition"), p. 2. Defendant Elements Massage ("Defendant") responded with objections on January 12, 2026. *Id.* The parties describe meet and confer efforts in February 2026, which were unsuccessful. See Opposition p. 2; Motion to Compel, p. 2. Plaintiff subsequently filed the Motion to Compel. The Proof of Service filed March 2, 2026 reflects service on Defendant's counsel.

A case management conference ("CMC") was held on June 11, 2026. In its CMC Order, the Court directed the parties to further meet and confer regarding the discovery dispute. See CMC Order filed June 11, 2026, ¶1.

Following the CMC, the parties have continued to meet and confer. See Opposition, p. 3; Reply to Opposition filed July 24, 2026 (the "Reply"), pp. 1-2. Although no agreement has been finalized, both parties have indicated substantial progress toward a resolution, which includes a protective order and more limited scope of document production. *Id.*

Defendant filed the Opposition on July 21, 2026, and Plaintiff filed the Reply on July 24, 2026.

Analysis

In light of the parties' substantial progress toward a resolution, the Court, in its discretion, hereby continues the matter to **September 14, 2026, 9:00 am** in **Department 34**. The parties are ordered to engage in further meet and confer efforts to try to reach a final resolution to the discovery dispute.

Disposition

The Court hereby finds and orders as follows:

1. The hearing is **CONTINUED** to **September 14, 2026, 9:00 am** in **Department 34**.
2. The parties are ordered to continue to meet and confer regarding a final resolution to the discovery dispute. If resolved, the parties should advise Department 34 as soon as possible and, in any event, no less than a week in advance of the continued hearing date.